



CHAPTER lxviii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Kirkcudbright Burgh. A.D. 1925.
[31st July 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Kirkcudbright Burgh Order Confirmation Act 1925. Short title.

A.D. 1925.

SCHEDULE

KIRKCUDBRIGHT BURGH.

Provisional Order to authorise the provost magistrates and councillors of the royal burgh of Kirkcudbright to provide an additional water supply and to construct and maintain new waterworks to confer further powers on the Town Council with regard to borrowing and assessments and for other purposes.

WHEREAS the provost magistrates and councillors of the royal burgh of Kirkcudbright in the county of Kirkcudbright (hereinafter respectively called "the Town Council" and "the burgh") are the local and sanitary authority within the burgh under the Burgh Police (Scotland) Acts 1892 to 1911 and the Public Health (Scotland) Acts 1897 to 1907 :

And whereas the water supply for the burgh and the existing waterworks are vested in and managed and maintained by the Town Council :

And whereas the present supply of water has become inadequate and insufficient for the requirements of the burgh and for the health and convenience of the community :

And whereas it is expedient that a more abundant supply of water should be provided for use within the burgh and that the Town Council should be empowered for that purpose to acquire lands and construct and maintain additional waterworks :

And whereas it is expedient that the limits within which the Town Council are required to give a supply of water should be the burgh and that they should be authorised to supply water beyond such limits :

And whereas it is expedient that the Town Council should be authorised to raise money by rates assessments and charges and by borrowing for the purposes of this

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Order and of their water supply in accordance with the provisions in that behalf of the Burgh Police (Scotland) Acts 1892 to 1911 and this Order : A.D. 1925.

And whereas it is expedient that further powers should be conferred on the Town Council in relation to their waterworks and water supply :

And whereas estimates have been prepared by the Town Council for the construction and completion of the said additional waterworks and other works and for the purchase of lands and such estimates are as follows :—

	£
Purchase of lands and servitudes - -	4,700
Reconstruction of existing outlet or sluice (Work No. 1) and construction of intake and measuring chamber (Work No. 3) - - - - -	780
Conduits or lines of pipes (Works Nos. 2 4 6 and 7) - - - - -	15,750
Break pressure tank (Work No. 5) -	110
Subsidiary works - - - - -	660

And whereas the said several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the harbour of Kirkcudbright is vested in and is maintained by the Town Council under the Burgh Harbours (Scotland) Act 1853 :

And whereas the revenue of the harbour undertaking has been inadequate to meet the expenses of management and maintenance thereof and it is expedient that the Town Council should be authorised to levy an assessment and borrow money for the purposes of the harbour undertaking as provided by this Order :

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the

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A.D. 1925. — principal sheriff clerk of the county of Kirkcudbright and such plans sections and book of reference are in this Order respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

PART I.

PRELIMINARY.

Short title
and com-
mencement
of Order.

1. This Order may be cited for all purposes as the Kirkcudbright Burgh Order 1925 and shall come into operation at the date of the passing of the Act confirming the same which date is referred to in this Order as “the commencement of this Order.”

Division of
Order into
Parts.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Water.

Part III.—Harbour.

Part IV.—Borrowing powers.

Incorpora-
tion of Acts.

3. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order (namely) :—

(1) The Waterworks Clauses Act 1847 except—

(a) The sections and provisions thereof with respect to the communication pipes to be laid by the undertakers;

(b) Clauses 68 70 71 and 72;

(c) Clauses 75 to 82 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts;

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(2) The Waterworks Clauses Act 1863;

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In construing the provisions of the foregoing Acts "the undertakers" "the company" and "the promoters of the undertaking" shall mean the Town Council:

(3) The Lands Clauses Acts:

(4) The sections and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said sections and provisions "the company" means the Town Council "the railway" means the works authorised by this Order and the works connected therewith and "the centre of the railway" means any part of those works.

This Order shall be deemed a special Act within the meaning of the provisions of the said Acts wholly or partly incorporated herewith.

4. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the following expressions shall have the meanings respectively assigned to them in this section (namely):—

Interpretation.

"The burgh" means the royal burgh of Kirkcudbright;

"The Town Council" means the provost magistrates and councillors of the burgh;

"The Burgh Police Acts" means the Burgh Police (Scotland) Acts 1892 to 1911;

"The water undertaking" means the existing waterworks and water undertaking of the Town Council and the waterworks and water undertaking authorised by this Order;

"The water assessment" means the assessment levied by the Town Council for the purposes of the water undertaking;

"The harbour undertaking" means and includes the harbour of Kirkcudbright together with

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all works and conveniences connected therewith and the right to levy rates and all other rights vested in the Town Council in connection with such harbour;

“The sheriff” means the sheriff of Dumfries and Galloway or any of his substitutes;

“The tribunal” means the tribunal to whom any question of disputed purchase money or compensation is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919.

PART II.

WATER.

Limits of supply.

5. Subject to the provisions of this Order the limits for the compulsory supply of water by the Town Council shall be the burgh which limits are in this Order referred to as “the limits of compulsory supply.”

Power to make works.

6. Subject to the provisions of this Order the Town Council may wholly in the county of Kirkcudbright and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):—

Work No. 1 A reconstruction of the existing outlet or sluice in the parish of Girthon situate at the west end of the existing reservoir known as Loch Whinyeon:

Work No. 2 A conduit or line of pipes in the parish of Twynholm commencing at a point at the eastern end of Loch Whinyeon and terminating at the intake and measuring chamber (Work No. 3):

Work No. 3 An intake and measuring chamber in the parish of Twynholm situate on the south side of Glengap Burn:

Work No. 4 A conduit or line of pipes in the parish of Twynholm commencing in the intake and measuring chamber (Work No. 3) and

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terminating at the break pressure tank (Work No. 5): A.D. 1925.

Work No. 5 A break pressure tank in the parish of Twynholm situate in the enclosure numbered 23 on the $\frac{1}{2500}$ Ordnance Survey map of Kirkcudbrightshire sheet No. XLI. 16 edition of 1908:

Work No. 6 A conduit or line of pipes in the parish of Twynholm commencing at the break pressure tank (Work No. 5) and terminating on the west bank of the Glengap Burn:

Work No. 7 A conduit or line of pipes commencing in the parish of Twynholm at the break pressure tank (Work No. 5) and terminating in the parish of Kirkcudbright at the existing tank of the Town Council near Low Boreland.

7. In addition to the foregoing works the Town Council may upon the lands delineated on the deposited plans and described in the deposited book of reference make maintain and use all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the beforementioned works or any or either of them but nothing in this section shall exonerate the Town Council from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. Power to make subsidiary works.

8. In the construction of the works by this Order authorised the Town Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that except for the purposes of crossing over a stream no part of any pipe shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections: Limits of deviation.

Provided further that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

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Power to
take waters.

9. Subject to the provisions of this Order the Town Council may collect impound take use divert and appropriate for the purposes of the water undertaking the waters of Loch Whinyeon and all streams and tributaries the waters of which drain or flow into the said loch.

Existing
waterworks
and new
works to
form one
under-
taking.

10. Subject to the provisions of this Order the existing waterworks of the Town Council and the works to be constructed under the authority of this Order shall for all purposes whatsoever be and be deemed to be part of the water undertaking.

Laying
mains on
public roads.

11. The Town Council may subject to the consent of the road authority at any time for the purposes of conveying water from any of the existing waterworks of the Town Council or of the works by this Order authorised or for distributing and supplying water beyond the burgh lay down make maintain and use aqueducts conduits or lines of pipes through over under along across or into any public road or highway and renew alter enlarge duplicate and increase the number and size thereof or extend the same and stop up temporarily any such public road or highway for such purposes providing when possible a proper temporary substitute to the reasonable satisfaction of the road authority before interrupting the traffic on any such road or highway and making full compensation to all persons injuriously affected by anything done under the provisions of this section. Provided that the consent aforesaid of the road authority shall not be unreasonably withheld and any question as to whether such consent has been unreasonably withheld shall be referred to and determined by an arbiter to be nominated failing agreement by the sheriff on the application of either party and the decision of such arbiter shall be final. Provided also that nothing in this section shall prejudice extend or affect the powers or provisions of this Order with respect to the works authorised by this Order.

Power to
alter roads
&c. tempo-
rarily.

12. For the purposes and during the execution of the several works which the Town Council are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Town Council may temporarily from time to time break up or cross over or under alter or stop up any streets

highways roads lanes footways footpaths bridges railways A.D. 1925.
 passages sewers drains watercourses gas pipes and water
 pipes and electric or telephonic apparatus in any of
 the lands shown on the deposited plans and specified
 in the deposited book of reference which they may
 from time to time find it expedient for any of those
 purposes so to interfere with providing when possible
 a proper temporary substitute before interrupting the
 traffic on any such street highway road lane footway
 footpath bridge railway or passage or the flow of water
 gas sewage or electricity or telephonic communication in
 any such sewer drain watercourse pipe or apparatus and
 making full compensation to all persons injuriously
 affected thereby Provided that nothing in this section
 shall extend to authorise any interference with any
 telegraphic line (as defined by the Telegraph Act 1878)
 or other property of His Majesty's Postmaster-General
 Provided also that nothing in this section shall extend
 to or authorise any interference with any works of any
 undertakers within the meaning of the Electricity
 (Supply) Acts 1882 to 1922 to which the provisions
 of section 15 of the Electric Lighting Act 1882 apply
 except in accordance with the provisions of that section.

13. The Town Council may from time to time subject to the provisions of this Order and notwithstanding the expiration of the period limited for completion of the works by this Order authorised lay down maintain use extend alter renew relay replace enlarge and increase the number and size of the works (other than reservoirs) mains pipes filters filter beds tanks channels and other works and conveniences from time to time in use or required for filtering storing conveying and distributing water for the purposes of the water undertaking Provided always that such extension enlargement or increase shall be executed only on lands or property belonging to the Town Council or over which the Town Council have acquired a servitude or which may be acquired by them by agreement or in roads and streets which they are by the Waterworks Clauses Acts 1847 and 1863 entitled to open and break up for such purposes.

Town Council may enlarge or increase number of pipes.

14. The Town Council may on any lands which they may acquire under the powers of this Order or otherwise construct all such drains channels and other works as they may think necessary or desirable for preventing

For protection of reservoirs &c. from pollution.

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A.D. 1925. — sewage or polluting liquids or contaminated or impure water from entering or polluting any of the reservoirs conduits watercourses or waterworks of the Town Council or any waters flowing into the same.

Reservation
of water
rights on
sale.

15. The Town Council on selling any lands acquired for or in connection with the purposes of this Order and not required to be retained for those purposes may subject to the provisions of the section of this Order of which the marginal note is "Limiting powers of Town Council to abstract water" reserve to themselves all or any part of the water rights belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter or otherwise as they may think fit.

Power to
agree as to
drainage of
lands.

16. The Town Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the reservoir and works by this Order authorised with reference to the execution by the Town Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Order authorised to be diverted collected and appropriated by the Town Council flowing to upon or from such lands directly or derivatively into such reservoir and works.

Power to
discharge
water tem-
porarily into
streams.

17. The Town Council may at any time for the purpose of constructing repairing examining emptying or cleansing any of the waterworks of the Town Council cause the water in any such work to be temporarily discharged into any available drain stream or watercourse.

In the exercise of the power conferred by this section the Town Council shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by an arbiter agreed on between the parties or failing agreement appointed by the sheriff on the application of either party.

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18. The Town Council may hold retain and use for the purposes of the water undertaking any lands already acquired for the purposes of their existing waterworks.

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Power to
use lands
already
acquired.

19. Subject to the provisions of this Order the Town Council may purchase acquire hold enter upon take appropriate and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of this Order.

Power to
acquire
lands.

20. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Town Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Persons
under dis-
ability may
grant servi-
tudes &c. by
agreement.

21.—(1) The Town Council may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

Power to
acquire
servitudes
only in cer-
tain cases.

(2) As regards any lands in respect of which the Town Council have acquired servitudes only under the provisions of this section the Town Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if this Order had not been confirmed.

(3) Provided that nothing in this section contained shall authorise the Town Council to acquire by compulsion

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A.D. 1925. any such servitude in any case in which the owner in his particulars of claim shall require the Town Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

Power to acquire and hold lands for protection of works and prevention of pollution.

22. The Town Council may hold any lands acquired by them for the purposes of or in connection with their existing waterworks and any lands acquired by them under this Order and may also by agreement purchase acquire and hold any lands or take servitudes or restrictions over any lands which they may deem necessary or desirable for the purpose of securing the purity of the water in the drainage area of the waterworks of the Town Council and of protecting their water supply against pollution fouling contamination nuisance encroachment or injury and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Order or the Lands Clauses Acts respectively Provided that the Town Council shall not create or permit a nuisance on any such lands and shall not erect or permit the erection of any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with the water undertaking or farm buildings.

The Town Council may let for such period as they think fit or sell or feu any land acquired under this section on such terms conditions and restrictions as regards its use as to the Town Council may seem fit and to secure that such land shall not be manured or broken up for tillage and that no buildings which may prejudicially affect the water supply or the purity of the water shall be erected thereon The proceeds of the sale of any land by the Town Council shall only be applied to purposes of this Order to which capital is properly applicable.

Power to acquire additional lands by agreement.

23. The Town Council may from time to time for the purposes of this Order purchase by agreement in addition to the lands by this Order authorised to be acquired by compulsion any lands not exceeding in the whole twenty acres but nothing in this Order shall exonerate the Town Council from any action interdict

or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section and no house or building shall be erected on any such lands other than any houses or buildings which may be required in connection with the water undertaking. A.D. 1925.

24. The Town Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or some other Order confirmed by or having the effect of an Act of Parliament or in some Act of Parliament. Limiting powers of Town Council to abstract water.

25. The powers of the Town Council for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order. Period for compulsory purchase of lands.

26. If the works in this Order described are not completed within four years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Town Council for executing the same shall cease except as to so much thereof as is then completed. Period for completion of water-works.

27.—(1) Subject to the provisions of this Order any work authorised by this Part of this Order shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun. Works below high-water mark to be subject to approval of Board of Trade.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Town Council and the amount of such cost shall be a debt due from the Town Council to the Crown and shall

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A.D. 1925. — be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Dwelling-houses for persons employed by Town Council.

28. The Town Council may purchase or take on lease dwelling-houses for such of the keepers of reservoirs water officers foremen or workmen as are required in consequence of the nature of their duties to reside in close proximity to the places where they are employed and they may erect maintain and let such dwelling-houses with all necessary conveniences and appurtenances for such persons upon any lands acquired by the Town Council and (subject to the terms of the lease) upon any lands for the time being leased to the Town Council for the purposes of the water undertaking and with the consent of the Scottish Board of Health upon any other lands for the time being belonging to or leased to the Town Council.

Town Council may supply water for other than domestic purposes.

29. The Town Council may furnish to any person within the limits of compulsory supply a supply of water for other than domestic purposes to shops offices and warehouses and for steam engines or railway purposes or for warming or ventilating any premises other than dwelling-houses or for working any machine or apparatus or for cattle or for horses or for washing carriages or motor cars or for gardens fountains or ornamental purposes or for any trade manufacture business or occupation or for hotels taverns or for any other purpose not domestic and either in bulk or otherwise such respective supplies being so furnished at such rates and upon such terms and conditions as shall be fixed from time to time by the Town Council and in the event of disagreement either as to the ability of the Town Council to give the supply or as to the rate terms or conditions on or in respect of which the supply is to be given the same shall be fixed by the sheriff upon summary application made in the sheriff court at Kirkcudbright by either of the parties and the decision of the sheriff shall be final Provided always that so far as possible the rate for such supply of water shall be uniform to all persons in the same circumstances and requiring the same extent of supply and the charges for such supply shall be recoverable in the same manner as any other water assessment rates or charges may be recovered by the Town Council under the authority of this Order Provided further that when water is so

supplied the Town Council shall not charge the water assessment and also charge for water supplied to the same premises by meter but the Town Council shall have the option either to charge the water assessment in respect of the premises for which such supply is given or to charge for the same by meter or they may charge in addition to the water assessment such special rates as may be fixed as aforesaid for water supplied otherwise than by meter for the purposes or any of them in this section mentioned. Provided also that the supply of water under this section shall not prejudicially affect or restrict the supply of water from time to time required for domestic use within the limits of compulsory supply. Provided further that in the application of this section to lands premises or buildings belonging to any railway company such company shall be entitled to require the Town Council to set off against the aggregate of the said water rates levied upon their whole lands premises and buildings other than dwelling-houses within the limits of compulsory supply the aggregate amount of the charges for water furnished to any such company for other than domestic purposes at all places wheresoever within the said limits the Town Council being entitled to charge either of such aggregates as they shall think fit.

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30. The water to be supplied from any main or pipe of the Town Council whether existing or authorised to be constructed or reconstructed by this Order need not be constantly laid on under pressure during the execution of necessary repairs renewals or alterations nor be supplied in any case at a level above or at a greater height than can be supplied or afforded by gravitation from the existing service reservoirs or tanks of the Town Council or from the waterworks by this Order authorised from which the supply is given.

Pressure.

31. The Town Council may from and after the completion of the waterworks by this Order authorised supply by agreement water from any of the lines of pipes by this Order authorised or from any of the works of the Town Council to any owners or occupiers of lands or heritages beyond the limits of compulsory supply and lying adjacent or near to any such lines of pipes or works and also to any local authority in or through or near to whose district the lines of pipes

Supply of water by Town Council along line of pipes.

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A.D. 1925. or waterworks of the Town Council may pass or be constructed and the Town Council may contract with all or any of such persons or authority for such supply at such rates upon such terms and conditions and for such period or periods of time as they may agree. Provided always that any supply of water under the provisions of this section shall not prejudicially affect or restrict the supply of water from time to time required for any purpose within the limits of compulsory supply. Provided further that any supply of water by the Town Council under this section shall not be given except with the consent of any local authority company or person supplying water under Parliamentary authority within the district to be supplied and of the local authority of that district.

Town Council not bound to supply several houses by one pipe.

32. The Town Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of discontinuance.

33. A notice to the Town Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Town Council or be given by the consumer personally at the office of the Town Council.

Byelaws for preventing waste &c. of water.

34.—(1) The Town Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Town Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 183 to 188 of the Public

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Health (Scotland) Act 1897 shall apply to all byelaws A.D. 1925.
so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Town Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Town Council as the water rates in respect of the premises are recoverable.

35. The Town Council shall not be bound to supply with water otherwise than by meter any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Supply to houses partly used for trade &c.

36. The Town Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell meters.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Town Council to let for hire any water fittings to any person supplied by them with water.

37. Before any person connects or disconnects any meter by means of which any of the water of the Town Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Town Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Town Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Town Council of connecting or disconnecting meters.

38. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Town Council or who fraudulently alters the index to any meter or other Injuring meters &c.

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A.D. 1925. — instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Town Council shall (without prejudice to any other right or remedy for the protection of the Town Council) be liable to a fine not exceeding five pounds and the Town Council may in addition thereto recover the amount of any damage by them sustained And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter or instrument or fittings belonging to the Town Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Town Council the Town Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Town Council by the person so offending and may be recovered by them as water rates and assessments are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Town Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Town
Council
may repair
apparatus
on failure
by owner or
occupier.

39. If any of the apparatus shall be out of order the owner or occupier of the house or premises in or to which such apparatus is placed or attached shall be bound to repair and make good the same and if such owner or occupier fail to make the requisite repairs within twenty-four hours after notice in writing so to do by the Town Council or by any officer of the Town Council the Town Council or any person authorised by them may enter upon such premises and repair

renew and make watertight all such apparatus and the Town Council shall be entitled to recover from the owner or occupier so failing the cost of such repair or renewal together with any penalty which may have been incurred for wilful waste of water or for suffering such apparatus to be out of repair in the manner provided in the Acts herewith incorporated for the recovery of penalties or by action in any court of competent jurisdiction and for the purposes of this section the word "apparatus" means and includes pipe cistern bath water-closet ball-cock stop-cock valve and other articles used in the supply or storing of water in houses manufactories or premises or in connection therewith Provided that in the event of the expense of such repair or renewal being paid by the occupier of any such house or premises he shall be entitled to recover such expense from the owner thereof or to deduct the same from his rent unless otherwise provided for by the terms of the tenancy.

A.D. 1925.

40. Every person who fraudulently takes or uses water belonging to the Town Council for any purpose other than domestic or drinking purposes shall for every such offence be liable to a penalty not exceeding ten pounds and to a daily penalty of five pounds for each day any such offence continues after conviction.

Penalty for taking water except for domestic use.

41. All penalties exigible under the provisions of this Part of this Order and of the Acts wholly or partially incorporated herewith (excepting any penalties which may be imposed upon the Town Council) shall be paid over to the Town Council instead of being applied in the manner provided in the last-mentioned Acts or the Acts therein referred to.

Application of penalties.

42. All offenders against any of the provisions of this Part of this Order or of any of the Acts incorporated with the same respectively or against any of the byelaws of the Town Council may be prosecuted and all penalties in respect of offences against any of such provisions or byelaws may be recovered summarily by the Town Council under the Summary Jurisdiction (Scotland) Act 1908.

Prosecution of offenders.

43.—(1) The Town Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall

Power to supply fittings.

[Ch. lxviii.] *Kirkcudbright Burgh* [15 & 16 Geo. 5.]
Order Confirmation Act, 1925.

A.D. 1925. — not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Town Council in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to poinding or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Town Council as the actual owners thereof:

Provided as follows:—

- (a) The Town Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);
- (b) Every sum charged by the Town Council in respect of provision of such fittings or repairing fixing or removal thereof shall be clearly stated in every demand note delivered by the Town Council to the consumer;
- (c) The total sums expended and received by the Town Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

Power to lay pipes in private streets.

44. The Town Council may on the application of the owner or occupier of any premises within the limits of compulsory supply abutting on or being erected in

[15 & 16 GEO. 5.] *Kirkcudbright Burgh* [Ch. lxviii.]
Order Confirmation Act, 1925.

any street laid out but not dedicated to the public use supply such premises with water and may lay down take up, alter, relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if section 29 of the Waterworks Clauses Act 1847 had been excepted from the incorporation of that Act in this Order.

A.D. 1925.
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45. For the purpose of complying with any obligation under this Order to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

As to breaking up ground for maintaining communication pipes.

46. The Town Council may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of compulsory supply to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon :

Power to Town Council to supply water to local authorities and others.

Provided that such supply shall not be given except with the consent of any local authority company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for any purpose within the limits of compulsory supply.

47. The Town Council may if they see fit furnish a supply of water for the purposes of watering or cleansing streets or of flushing or cleansing sewers and drains or for public baths or washhouses or for public fountains or wells either gratuitously or at such charge or reduced charge and upon such terms and conditions as they shall think proper.

Cleansing sewers &c.

48. For the purpose of providing for the better distribution of the water supply among the inhabitants within the limits of compulsory supply the Town Council may require the owner of any dwelling-house or tenement of dwelling-houses not properly supplied with water in any street within the limits of compulsory supply in which the pipes of the Town Council are laid to take a

Owners to provide and maintain service pipes.

[Ch. lxviii.] *Kirkcudbright Burgh* [15 & 16 Geo. 5.]
Order Confirmation Act, 1925.

A.D. 1925. — supply of water for such house or tenement by connecting a service pipe with the main pipe of the Town Council in any such street (such connection to be made by the Town Council or some person to be employed by them at the expense of the owner) and to provide lay and maintain in good and sufficient repair such service pipes stand pipes or taps cisterns and other means and apparatus and in such positions as may be necessary for that purpose and in the event of refusal or delay on the part of such owner to comply with such requisition it shall be lawful for the Town Council to enter such house or tenement and premises connected therewith and to provide lay and maintain such service pipes stand pipes or taps cisterns and other means and apparatus in such positions as aforesaid and to recover the expense thereof from such owner in the same manner as the water assessment rates or charges are recoverable by the Town Council under this Order and the Waterworks Clauses Acts 1847 and 1863. Provided always that in the case of houses not exceeding four pounds of yearly rent or value such owner shall not be required to introduce water into each house but only such means of supply for each tenement of houses as the Town Council may deem necessary. Provided also that in case of any question or difference between the Town Council and any owner to whom this section applies with respect to the necessity for such supply or as to any other matter arising under this section the same shall be determined by the sheriff on summary application made in the sheriff court at Kirkcudbright by either of the parties and the decision of the sheriff shall be final.

Tube or
hose not to
be affixed to
mains or
pipes with-
out consent
of Town
Council.

49. It shall not be lawful for the owner or occupier of any house or premises supplied with water by the Town Council without their written consent to affix or permit or suffer to be affixed any tube or hose to any of the mains or pipes of the Town Council or to any service pipe or apparatus of such owner or occupier for the purpose of washing horses carriages or other vehicles houses or buildings or for watering gardens or washing pavements or roads or for any other purpose and any person who contravenes this enactment shall be guilty of an offence and shall for every such offence forfeit and pay to the Town Council a penalty not exceeding forty shillings.

50. The Town Council may agree with any person for supplying him with water by measure and may require any person supplied with water for other than domestic purposes to take and pay for his supply by measure. In both cases a meter for ascertaining the quantity consumed shall be provided by the Town Council at a reasonable rent to be fixed by the Town Council.

A.D. 1925.

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Rent for
water may
be ascer-
tained by
meter.

51. The following provisions for the protection of the London Midland and Scottish Railway Company (hereinafter in this section called "the company") shall unless otherwise agreed between the company and the Town Council apply and have effect (that is to say):—

For protec-
tion of
London
Midland and
Scottish
Railway
Company.

(1) Notwithstanding anything contained in this Order or shown upon the deposited plans and sections the Town Council shall not under the powers of this Order take or acquire by compulsion any lands or property of the company but the Town Council may purchase and the company shall sell if required by the Town Council such servitude in under over or upon the lands property and works of the company as may be required for making and maintaining in accordance with the provisions of this Order the works by this Order authorised:

(2) Before constructing any works under the powers of this Order or any subsequent repairs thereof in over under or affecting any of the railways works and property of the company the Town Council shall submit to the company plans sections working drawings and specifications thereof showing the line and level and the manner in which such works or operations are to be carried out and the mode of execution thereof for the approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless the company signify their disapproval within twenty-one days after submission of the said plans sections working drawings and specifications for approval:

(3) All the said works and operations shall be constructed carried on and completed and thereafter maintained repaired and renewed by

[Ch. lxviii.] *Kirkcudbright Burgh* [15 & 16 Geo. 5.]
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A.D. 1925.

the Town Council in strict conformity with the plans sections working drawings and specifications so approved at the sole risk and cost of the Town Council and at the sight and to the reasonable satisfaction of the engineer of the company :

- (4) Notwithstanding anything contained in this Order or shown upon the deposited plans and sections the Town Council shall not without the previous consent in writing of the company enter upon or alter or interfere with the railways works and property of the company further or otherwise than may be necessary for constructing maintaining and renewing under the powers of this Order any works to be laid in upon over or under the said railways works and property of the company of which they shall give the company fourteen days' notice in writing except in cases of emergency in which case such notice as is reasonably practicable shall be given :
- (5) The Town Council shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with the construction of any works under the powers of this Order or the subsequent maintenance renewal use alteration replacing or repair thereof including (without prejudice to the said generality) any expense which the company may reasonably incur in connection with the employment of inspectors signalmen watchmen and others and for superintendence during construction of the works constructed under the powers of this Order and for all extra precautions for the safety and working of their traffic or protection of their property on account of the execution maintenance renewal use alteration replacing or repair of the said works :
- (6) All the said works and operations and the subsequent maintenance renewal alteration replacing or repair thereof shall in so far as the same affect the railways works and property of the company be carried out by the Town Council so as not to injure or alter or interfere with (except so

far as may be necessary for carrying out the said works and operations) or endanger the structure or stability of any of the said railways works and property of the company and if in consequence of any of the foresaid works and operations any underpinning or other protective works should be necessary to secure the support or safety of the said railways works and property of the company the Town Council shall at their own expense execute the same to the reasonable satisfaction of the company and should any damage or injury to or interruption or impediment of or interference with the passage or conduct of traffic on the said railways works and property of the company be caused by or be in any way owing to the said works or operations of the Town Council or the failure of or defect in any of the said works or operations the Town Council shall at their own cost and free of all expense to the company execute and do all such works as may be necessary to restore the damage or injury and remove such interruption impediment or interference as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Town Council and execute all such works and do all such things as may be necessary to restore such damage or injury or to remove or prevent such interruption impediment or interference and the Town Council shall on demand repay to the company all reasonable costs and expenses incurred by them in connection therewith :

A.D. 1925.

- (7) The Town Council shall make reasonable compensation to the company for all loss or damage caused by such works and operations interruption impediment or interference to or with the said railways works and property of the company and the Town Council shall also free and relieve and indemnify the company from all damages or compensation which may be recovered from them at the instance of their employees passengers owners of merchandise traders or owners of property adjoining the said works or any other person or persons by reason of such

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interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the Town Council or those for whom they are responsible :

- (8) Should it be necessary in constructing any works under the powers of this Order or in subsequently maintaining renewing altering or repairing the same to alter or remove any telegraph posts wires or telegraphic telephonic or signalling apparatus belonging to or maintained by the company the Town Council shall pay to and reimburse the company in all expense incurred by them in connection with such alteration or removal and the erection of other posts wires or apparatus in substitution for those so altered or removed :
- (9) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining and repairing and whenever in their discretion deemed necessary reconstructing altering renewing deviating widening or enlarging any of the lines of railway or other works or property belonging to them without interference on the part of the Town Council and without incurring any liability to them or to any person using the works constructed under the powers of this Order for any loss injury damages or expenses which may arise from such maintenance repair reconstruction alteration renewal deviation widening or enlarging Provided that any extra expense which the company may incur in such maintenance repair renewal deviation widening enlarging alteration or reconstruction by reason of the existence of any of the said works shall be paid by the Town Council :
- (10) In the event of the company doing any of the acts referred to in the immediately preceding subsection they shall do so in such manner as to cause as little damage and interference as practicable to and with the works of the Town

Council and shall give (except in case of emergency in which case such notice as is reasonably practicable shall be given) fourteen days' previous notice in writing to the Town Council before commencing any such operations as may affect any of the said works :

A.D. 1925.

(11) If the company give to the Town Council notice that they themselves desire to construct so much of any works constructed under the powers of this Order or to carry out so much of the alterations of any mains pipes or culverts to be laid by the Town Council under the powers of this Order as will be situate on the lands and property of the company the company may themselves execute such works and alterations at the sight and to the reasonable satisfaction of the engineer to the Town Council and recover the reasonable cost thereof from the Town Council :

(12) Any question or difference between the Town Council and the company arising under this section shall be referred to and determined by an arbiter to be agreed upon between the Town Council and the company or failing agreement to be nominated by the sheriff on the application of the Town Council or the Company.

PART III.

HARBOUR.

52.—(1) The Town Council may and shall provide such moneys as may be and may become necessary for the purposes of the harbour undertaking and the maintenance management and improvement thereof and the payment of expenses in connection therewith in so far as they are properly chargeable to revenue account out of the harbour revenue or if that shall be insufficient out of moneys to be raised by means of the assessment by this section authorised to be imposed and levied.

Power to
Town Coun-
cil to pro-
vide moneys
for harbour
undertaking
and to im-
pose and
levy assess-
ment.

(2) The Town Council may as from and after the fifteenth day of May one thousand nine hundred and twenty-five if and so far as may be necessary for the purposes mentioned in subsection (1) of this section or any of such purposes and for the purpose of paying

[Ch. lxviii.] *Kirkcudbright Burgh* [15 & 16 GEO. 5.]
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A.D. 1925. — any expense of and connected with the provision of the moneys therein referred to charge in equal proportion all owners and occupiers of lands or premises within the burgh with an assessment not exceeding one shilling in the pound of the rateable value of the burgh which shall be levied and recovered in the same manner as the general improvement rate authorised by the Burgh Police Acts is levied and recovered and all the provisions of those Acts with respect to the mode of imposing levying and recovering the general improvement rate shall *mutatis mutandis* extend and apply to the said assessment hereby authorised.

Power to
accept
grants of
money.

53. The Town Council may accept and apply towards the purposes of the harbour undertaking any moneys which may be granted or contributed to them for those purposes or any of them.

Contingency
fund.

54. The Town Council may if they think fit for the purpose of forming and maintaining a contingency fund not exceeding at any time the sum of two thousand pounds to meet any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the harbour appropriate and set apart subject to the provisions of this Order as to the application of the harbour revenue any amount which they think fit in any year out of the harbour revenue and shall deposit any such amount in some joint stock bank of issue in Scotland to be increased by accumulation in the way of compound interest or otherwise or shall invest the same in securities in which trustees in Scotland may lawfully invest trust money (but not in securities of the Town Council) until required for any of the aforesaid purposes.

Application
of harbour
revenue.

55. The Town Council shall apply the revenues to be received from the harbour undertaking and all moneys received for or in respect of the assessment for the purposes of that undertaking authorised to be levied by this Order for the purposes and in the order following and not otherwise (that is to say) :—

- (1) In paying the expenses properly chargeable to revenue of conducting managing repairing and maintaining the harbour undertaking including the purchasing of the necessary appliances therefor :

- (2) In paying year by year the interest accruing on money borrowed under this Order for the purposes of the harbour undertaking: A.D. 1925.
- (3) In forming a sinking fund in accordance with this Order for payment of moneys borrowed under this Order for the purposes of the harbour undertaking:
- (4) In repaying to the burgh all sums which have been provided by means or out of the assessment for the purposes of the harbour undertaking authorised by this Order to be levied and have been applied for those purposes:
- (5) In making such payments (if any) as the Town Council think fit into a contingency fund established under the provisions of this Order:
- (6) The surplus (if any) after providing for the purposes aforesaid shall be applied by the Town Council in the improvement of the harbour undertaking.

56.—(1) The Town Council shall on or before the date when a copy of their annual account or an abstract thereof is under section 96 of the Town Councils (Scotland) Act 1900 to be sent to the Secretary for Scotland send a copy of the same to the Ministry of Transport and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Town Council and any and every such account. Annual account to be sent to Ministry of Transport.

(2) The Town Council shall as from the said date be liable to a penalty not exceeding twenty pounds for each week or part of a week during which they refuse or neglect to comply with the foregoing provisions of this section.

(3) The account of the Town Council referred to in this section and in section 50 of the Harbours Docks and Piers Clauses Act 1847 respectively shall be made up to the end of the fifteenth day of May in each year.

PART IV.

BORROWING POWERS.

57.—(1) The Town Council may from time to time borrow at interest for and in connection with the purposes Power to borrow.

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mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenues assessments and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Order referred to as "the prescribed period") mentioned in the fourth column thereof (namely):—

Purpose.	Amount.	Charge.	Period for Repayment.
(a) Water :—	£		
(i) For the purchase of lands and servitudes.	4,700	The water assessment and other revenues of the water undertaking and the burgh general assessment.	Sixty years from the date or dates of borrowing. Forty years from the date or dates of borrowing. Thirty years from the date or dates of borrowing.
(ii) For the construction of the works authorised by this Order.	16,640		
(iii) For subsidiary works.	660		
(b) For paying the costs charges and expenses of this Order.	The sum requisite.	The burgh general assessment.	Five years from the commencement of this Order.

(2) (a) In addition to the moneys which the Town Council are by the foregoing provisions of this section authorised to borrow they may borrow :—

- (i) Such sums of money as may be required for the purposes of the water undertaking and as the Secretary for Scotland may sanction and any moneys so borrowed shall be chargeable on the water assessment and other revenues of the water undertaking and the burgh general assessment;
- (ii) Such sums of money as may be required for the purposes of the harbour undertaking and as the Secretary for Scotland after consultation with the Minister of Transport may sanction and any moneys so borrowed shall be chargeable on the revenue of the harbour undertaking and the assessment for the purposes of that undertaking authorised by this Order,

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(b) (i) Any money borrowed under this subsection for the purposes of the water undertaking shall be repaid within such period and by such method as the Secretary for Scotland may prescribe. A.D. 1925.
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(ii) Any money borrowed under this subsection for the purposes of the harbour undertaking shall be repaid within such period and by such method as the Secretary for Scotland after consultation with the Minister of Transport may prescribe.

(c) The Secretary for Scotland shall have and may exercise in relation to any such sanction as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889.

58.—(1) The Town Council shall have power—

Power to
re-borrow.

(a) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid;
or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Town Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Town Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Town Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

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- A.D. 1925. (c) Out of moneys derived from the sale of land; or
 (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Borrowing power for current expenses.

59. In the application to the burgh of section 49 (Power to borrow temporarily) of the Burgh Police (Scotland) Act 1903 the expression "any public general Act" shall be deemed to include this Order.

Mode of repayment of borrowed money.

60. The Town Council shall pay off all moneys borrowed by them (other than money borrowed for current expenses) under this Order either by means of a sinking fund formed under the provisions of this Order or by equal yearly or half yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them.

Application of moneys borrowed.

61. All sums borrowed by the Town Council on mortgage or cash account or otherwise (except any sums borrowed for current expenses) shall be applied only to purposes to which capital is properly applicable.

Sinking fund.

62.—(1) If the Town Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed and maintained either—

- (a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
 (b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three and a half per centum per annum or such other rate as the Secretary for Scotland may from time to time allow will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Town Council the Town Council being at liberty from time to time to vary and transpose such investments. A.D. 1925.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Town Council towards the equal annual payments to the fund.

(4) The Town Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Town Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Town Council.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Town Council in addition to the payments provided for by this Order.

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(7) If it appears to the Secretary for Scotland or to the Town Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Town Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Town Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Town Council may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be sufficient to repay the loan in respect of which it is formed within the prescribed period the Town Council may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Town Council may determine.

Application
of Burgh
Police Acts.

63. The provisions of the Burgh Police Acts with respect to water supply shall subject to the provisions of this Order and so far as not inconsistent therewith apply to the supply of water within the burgh by the

Town Council from their existing waterworks and from the works by this Order authorised. A.D. 1925.

64. The Town Council may provide out of the yearly water assessment and rates rents charges and other revenues of the water undertaking a reserve fund by setting aside such a sum annually as they may from time to time think fit and investing the same and the resulting income thereof upon such securities as the Town Council may by law for the time being invest their funds and accumulating the same at compound interest which reserve fund shall not at any time exceed in the whole the sum of five thousand pounds and shall be applicable as and when the Town Council may determine from time to time for the renewal of the works plant and apparatus or any extraordinary claim or demand at any time arising against the Town Council in respect of the water undertaking. Reserve fund.

65. The treasurer of the Town Council shall within six months after the expiration of each year during which any sum is required to be paid as an instalment or to be set apart for a sinking fund under this Order transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so paid or set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such treasurer so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable If it appear to the Secretary for Scotland by any such return or otherwise that the Town Council have failed to pay any instalment or to set apart any sum required by this Order to be set apart for the sinking fund or to make any increased payment thereto by this Order required or to have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Order the Secretary for Scotland may by order direct that a sum Annual return to Secretary for Scotland with respect to sinking fund.

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A.D. 1925. not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree by either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Protection of lender from inquiry. 66. No person lending money to the Town Council shall be bound to inquire as to the observance by the Town Council of any provision of the Burgh Police Acts or this Order or be bound to see to any application or be answerable for any loss or non-application of such money or any part thereof.

Reservation of prior mortgages. 67. Nothing in this Order shall prejudice or affect the priority or other rights or remedies under any mortgages or securities or obligations granted by the Town Council before the commencement of this Order and then subsisting.

For appointment of judicial factor. 68. The mortgagees of the Town Council under this Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than two thousand pounds.

Crown rights. 69. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Town Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of Order. 70. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and

[15 & 16 GEO. 5.] *Kirkcudbright Burgh* [Ch. lxviii.]
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confirming this Order or otherwise in relation thereto shall be paid by the Town Council out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of any moneys borrowed by them for that purpose under this Order and may be allocated by them amongst such of the departments of the Town Council as they may deem expedient. A.D. 1925.
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